

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Rendon	Team: Team # 1	CCRB Case #: 201108810	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/07/2011 12:30 PM, Friday, 07/08/2011 12:00 AM	Location of Incident: Flatbush Avenue between Church Avenue and Snyder Avenue; 63rd Precinct stationhouse		18 Mo. SOL 1/7/2013		Precinct: 70
Date/Time CV Reported Fri, 07/08/2011 12:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/08/2011 12:15 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Winston Willabus	03104	935969	070 PCT
2. POM David Bowman	16034	944015	070 PCT
3. POM Dudley Ewald	17310	943216	070 PCT
4. POM Ishmael Bailey	02884	947713	063 PCT
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Qunda Stewart-Perry	05263	917179	063 PCT
2. POM Joseph Imperatrice	03504	940282	070 PCT
3. POM Jonmichel Lobosco	30245	940384	070 PCT
4. POM Christopher Burton	16667	944399	063 PCT
5. POM Dino Massenat	10850	938956	063 PCT
6. POF Lisa Denton	00295	929594	063 PCT
7. POF Rachel Ford	21365	943248	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Winston Willabus	Abuse: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, SGT Winston Willabus supervised the frisk of § 87(2)(b)	A . Unsubstantiated
B . POM David Bowman	Abuse: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, PO David Bowman searched § 87(2)(b)	B . Unsubstantiated
C . SGT Winston Willabus	Abuse: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, SGT Winston Willabus supervised the search of the car in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . POM Ishmael Bailey	Abuse: On July 8, 2011, at the 63rd Precinct stationhouse, PO Ishmael Bailey did not process § 87(2)(b)'s complaint regarding officers.	D . Substantiated
E . An officer	Abuse: On July 8, 2011, at the 63rd Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding officers.	E . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 8, 2011, § 87(2)(b) called the CCRB to report the following complaint (encl. 5a-5b).

On July 7, 2011, at approximately 12:30 p.m., on Flatbush Avenue between Church Avenue and Snyder Avenue in Brooklyn, § 87(2)(b)'s vehicle was stopped by officers. On July 8, 2011, at approximately 12:00 p.m., § 87(2)(b) went to the 63rd Precinct stationhouse to file a civilian complaint regarding the previous day's incident. The following allegations resulted.

Allegation A – Abuse of Authority: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, SGT Winston Willabus supervised the frisk of § 87(2)(b)

Allegation B – Abuse of Authority: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, PO David Bowman searched § 87(2)(b)

Allegation C – Abuse of Authority: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, SGT Winston Willabus supervised the search of the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

it is recommended that **Allegations A, B, and C** be **unsubstantiated**.

Allegation D – Abuse of Authority: On July 8, 2011, at the 63rd Precinct stationhouse, PO Ishmael Bailey did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(g)

it is recommended that **Allegation D** be **substantiated**.

Allegation E – Abuse of Authority: On July 8, 2011, at the 63rd Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(g)

As a result, it is recommended that **Allegation E** be closed as **officer unidentified**.

§ 87(2)(g), § 87(4-b)

On July 15, 2012, § 87(2)(b) declined to mediate his complaint.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, who § 87(2)(b) and has black hair and brown eyes. § 87(2)(b)

CCRB Statement (encl. 5a-6j):

On July 8, 2011, § 87(2)(b) provided an intake statement to the CCRB (encl. 5a-5b). On July 12, 2011, § 87(2)(b) provided a phone statement (encl. 6a). On July 18, 2011, § 87(2)(b) was interviewed at the CCRB (encl. 6b-6d). On July 20, 2011, § 87(2)(b) provided a follow-up phone statement (encl. 6e). § 87(2)(b)

On July 7, 2011, at approximately 12:30 p.m., § 87(2)(b) was traveling northbound on Flatbush Avenue between Church Avenue and Snyder Avenue in Brooklyn in his silver 2004 Nissan Maxima with New York State license plates. § 87(2)(b) was coming from his home, located at § 87(2)(b) in Brooklyn, and driving to the Bronx. § 87(2)(b) did not commit any traffic violations between leaving his home and the vehicle stop. § 87(2)(b) made no stops and had no interactions with any individuals between leaving his home and the vehicle stop. While waiting at the red light on Flatbush Avenue and Church Avenue, § 87(2)(b) observed a marked patrol car behind his vehicle through his rearview mirror. The patrol car's turret lights turned on, and § 87(2)(b) assumed that he was being signaled to pull his vehicle over. Without advancing past the red traffic light, § 87(2)(b) pulled his vehicle over on the right-hand side of Flatbush Avenue. § 87(2)(b)'s driver's side window and front passenger side window were open. The patrol car followed § 87(2)(b) and stopped behind his vehicle.

PO David Bowman (identified by the investigation and described as a white male, who stood 6'2", had a medium build, was in his mid-30s, had blonde hair, was dressed in uniform, and was the driver of the patrol car) approached the driver's side of § 87(2)(b)'s vehicle. SGT Winston Willabus (identified by the investigation and described as a black male, who stood 6'2", had a stocky build, had short hair, was dressed in uniform, and was the passenger of the patrol car) approached the front passenger side of § 87(2)(b)'s vehicle. PO Bowman asked § 87(2)(b) for his driver's license, registration, and insurance information. § 87(2)(b) took his wallet out of his pocket, retrieved his driver's license from it, and then opened the glove compartment, where he retrieved his registration and insurance card. § 87(2)(b) handed the documents to PO Bowman. PO Bowman asked § 87(2)(b) where he was coming from. § 87(2)(b) told them that he was coming from his home and driving to his girlfriend's mother's birthday party in the Bronx. PO Bowman asked § 87(2)(b) why he had been driving on Flatbush Avenue. § 87(2)(b) explained that he was driving on Flatbush Avenue toward the Brooklyn Bridge. PO Bowman asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) stepped out of the vehicle and asked why he was being stopped. PO Bowman told § 87(2)(b) that he fit a description. § 87(2)(b) explained that his brother is a police officer, and asked if he could call him. PO Bowman said, "Don't worry about it. He's a sergeant; he'll check everything out," referring to SGT Willabus. § 87(2)(b) never asked what the description was that he was told that he fit, nor did the officers ever make reference to the specific crime to which the description was related.

PO Bowman looked at the documents that § 87(2)(b) handed to him, and then told § 87(2)(b) to turn around and put his hands on the vehicle. § 87(2)(b) complied with PO Bowman's instruction. PO Bowman patted all six pockets of § 87(2)(b)'s khaki cargo shorts and entered each of them. § 87(2)(b) was wearing a red tee shirt with the Flash superhero symbol on the front (a gold lightning bolt) and red

Nike sneakers. § 87(2)(b) had no items in his pockets. His wallet and cell phone were on the passenger seat. His keys were in the middle console. PO Bowman patted down the “rest of § 87(2)(b) s] body.” PO Bowman placed his finger inside of § 87(2)(b) s socks and felt around, and then told him to take his sneakers off. § 87(2)(b) took the sneakers off and PO Bowman looked inside of them and patted the soles of § 87(2)(b) s feet. After the frisk and search, which lasted approximately five to six minutes, PO Bowman told § 87(2)(b) to put his sneakers back on. PO Bowman never mentioned what he was looking for or asked any questions about the contents of § 87(2)(b) s pockets.

SGT Willabus told § 87(2)(b) to walk with him to the rear of the vehicle. SGT Willabus stood near the middle of the rear of the vehicle, and § 87(2)(b) stood by the left of the rear side of the vehicle. PO Bowman opened the driver’s side door of § 87(2)(b) s vehicle and sat on the driver’s seat with one leg outside of the vehicle. With his hand, PO Bowman searched the contents of § 87(2)(b) s glove compartment, which § 87(2)(b) had left open when he retrieved his documentation. PO Bowman did not go into the back seat or enter the vehicle through the passenger side or open the trunk of the vehicle. § 87(2)(b) observed PO Bowman’s actions through the rear window of his vehicle. In his first phone statement, § 87(2)(b) stated that PO Bowman also opened the lid of the middle console. While PO Bowman searched § 87(2)(b) s vehicle, SGT Willabus asked § 87(2)(b) where he was driving before the stop and asked him if he had been on East 21st Street (which is one block west of Flatbush Avenue). § 87(2)(b) said that he had not been on East 21st Street, and explained that he was coming from his home and driving to the Bronx. Using the radio on his shoulder, SGT Willabus called in computer checks on § 87(2)(b) s documents. PO Bowman walked to the rear of the vehicle and said that everything was fine and that § 87(2)(b) was free to go. SGT Willabus told § 87(2)(b) that his driver’s side tail light was broken, and told PO Bowman to demonstrate it. PO Bowman walked back to the driver’s side of the vehicle, sat in the driver’s seat, and stepped on the brakes so that § 87(2)(b) could see that the tail light was broken. PO Bowman did not say anything about a summons for the broken tail light and § 87(2)(b) did not receive a summons. The officers walked back to the patrol car and sat inside of it. § 87(2)(b) walked to the passenger side of the patrol car and asked SGT Willabus for his name, which SGT Willabus provided. § 87(2)(b) did not ask PO Bowman for his name. During the stop, aside from instructing PO Bowman to demonstrate that the tail light was broken, SGT Willabus did not instruct PO Bowman to perform any other actions. When § 87(2)(b) returned to his vehicle, he noticed that his middle console, which had originally been shut, had been opened during the stop.

On July 8, 2011, at approximately 12:00 p.m., § 87(2)(b) went to the 63rd Precinct stationhouse, located at Flatbush Avenue and Brooklyn Avenue in Brooklyn, to file a complaint regarding the previous day’s encounter. § 87(2)(b) walked to the front desk and spoke to the officer seated behind it, PO Ishmael Bailey (identified via photo array (encl. 17b) and described as a black male, who stood 6’1”-6’2”, had a muscular build, was in his late 20s to early 30s, and was dressed in uniform). § 87(2)(b) expressed his desire to file a civilian complaint and explained the events that took place on the previous day. PO Bailey stated that § 87(2)(b) could not file his complaint because the subject officers of his complaint were assigned to a different precinct. In his intake statement, § 87(2)(b) stated that he was told at the 63rd Precinct stationhouse by PO Bailey that they “don’t handle complaints” and was directed to call the CCRB. PO4 (remains unidentified and was described as a Hispanic or black female of lighter complexion, who stood under 6’1”, had a chubby build, was in her late 20s to early 30s, and was dressed in uniform) approached PO Bailey and § 87(2)(b) and reiterated the same information. PO Bailey and PO4 provided § 87(2)(b) with the phone number for the CCRB and § 87(2)(b) left the stationhouse. § 87(2)(b) was at the stationhouse for approximately fifteen to twenty minutes.

On February 29, 2012, § 87(2)(b) appeared at the CCRB to view two photo arrays. Prior to viewing the photo arrays, § 87(2)(b) was instructed that subject officers may or may not appear in any of the photos

being shown.

Photo Array #1 (encl. 17b): § 87(2)(b) initialed and dated photo #5, which identified PO Ishmael Bailey. § 87(2)(b) recognized PO Bailey from his July 8, 2011 visit to the 63rd Precinct stationhouse. § 87(2)(b) explained that his vehicle had been stopped on Flatbush Avenue near Church Avenue and that he wished to file a complaint regarding the incident. PO Bailey explained that the subject officers of his complaint were assigned to a different command and that he could not file complaints at the 63rd Precinct involving officers from other commands. PO Bailey directed § 87(2)(b) to a phone number listed on a piece of paper affixed to a nearby wall and told him to call the number in order to file his complaint. This conversation lasted five to ten minutes.

Photo Array #2 (encl. 17c): § 87(2)(b) was unable to identify any of the officers depicted in this photo array. SGT Qunda Stewart-Perry was depicted in photo #5.

On July 18, 2012, § 87(2)(b) appeared at the CCRB to view two photo arrays. Inv. Griffith from the CCRB was also present. Prior to viewing the photo arrays, § 87(2)(b) was instructed that subject officers may or may not appear in any of the photos being shown.

Photo Array #3 (encl. 17d): § 87(2)(b) initialed and dated photo #4, which was a false identification. PO Rachel Ford was depicted in photo #3.

Photo Array #4 (encl. 17e): § 87(2)(b) was unable to identify any of the officers depicted in this photo array. PO Lisa Denton was depicted in photo #5.

NYPD Statements:

Subject Officer: SGT WINSTON WILLABUS

- SGT Willabus is a § 87(2)(b)-old black male, who § 87(2)(b) and has black hair and brown eyes.
- On July 7, 2011, SGT Willabus was the supervisor of a street narcotics enforcement unit (SNEU) and worked from 9:15 a.m. to 6:12 p.m. SGT Willabus was dressed in uniform and partnered with PO David Bowman in the leader vehicle (marked patrol car #5041) of the SNEU team.

Memo Book (encl. 7a-7c):

SGT Willabus did not have memo book entries regarding this incident. At 11:05 a.m., the SNEU team established an observation set at Regent Place and East 21st Street. At 12:00 p.m. the team had an arrest at Beverly Road and Flatbush Avenue. At 1:00 p.m., the team had an arrest, but the location was not noted. At 1:40 p.m., the team had an arrest but the location was not noted. At 2:00 p.m., SGT Willabus had a blank entry. (SGT Willabus was unsure if this entry was meant to record the stop in question or another arrest by the team.) At 2:10 p.m., the team had two arrests, but the location was not noted. At 2:30 p.m., SGT Willabus returned to the 70th Precinct stationhouse.

CCRB Statement (encl. 7d-7f):

On November 4, 2011, SGT Willabus was interviewed at the CCRB. On July 7, 2011, the SNEU team that SGT Willabus supervised consisted of the following officers: SGT Willabus and PO Bowman in the leader vehicle, PO Jonmichel Lobosco and PO Amjad Kahn in the observation post, and PO Stacey Robinson and either PO Joseph Imperatrice, who has since been promoted to the rank of sergeant, or PO Dudley Ewald, in an apprehension vehicle. The observation sets were predetermined. The observation post was equipped with binoculars. The team communicated via point-to-point radios. SGT Willabus

supervised all arrests but not necessarily all stops made by the team. The observation post on the team was instructed, when transmitting an observation of a narcotics transaction, to relay information regarding the individual's clothing, gender, physical description, direction of origin and flight, whether a hand-to-hand occurred, whether an item and currency were exchanged, when applicable, a vehicle description, and when possible, the location of the contraband on the individual. SGT Willabus normally would have the observation post make several observations before any stops took place to ensure that the set was functioning. The observation post was positioned approximately a few hundred feet from Regent Place and East 21st Street. Inside the leader vehicle, PO Bowman was in the driver's seat and SGT Willabus was the passenger. SGT Willabus and PO Bowman did not have a view of the set from where they were parked one block north of the set, on Albermarle Road, and approximately one hundred to two hundred feet west of the intersection with East 21st Street. The apprehension vehicle was positioned one block south of the set.

On July 7, 2011, at approximately 12:30 p.m., the observation post transmitted a description to the rest of the team that consisted of the following: a black male buyer conducted a hand-to-hand transaction (SGT Willabus did not recall if the observation post described the objects that were exchanged) with a dealer, who approached the buyer's vehicle, at the set location, Regent Place and East 21st Street. The transmission included a description of the buyer and the vehicle, which was a silver Toyota Camry or Nissan Maxima. SGT Willabus did not recall the description of the buyer, except for his aforementioned race and gender. SGT Willabus did not know if the observation post used binoculars when making the observation. The dealer was subsequently apprehended in a separate encounter.

SGT Willabus and PO Bowman saw the vehicle as it approached Albemarle Road on East 21st Street and allowed it to make a right turn on Albemarle Road, followed by a left turn onto Flatbush Avenue (encl. 4c). § 87(2)(b) was the driver of the vehicle. After § 87(2)(b)'s left turn onto Flatbush Avenue, SGT Willabus and PO Bowman stopped the vehicle. SGT Willabus stated that, at this point, he possessed probable cause to make an arrest as a result of the information transmitted by the observation post. However, SGT Willabus set out to conduct an investigative stop rather than make the arrest immediately based on his personal reluctance to "put [individuals] through the system unnecessarily." SGT Willabus approached the passenger side and PO Bowman approached the driver's side. As SGT Willabus walked toward § 87(2)(b)'s vehicle from the rear, he saw, through the rear window of the vehicle, § 87(2)(b)'s upper body lean toward the passenger side of the vehicle. As SGT Willabus walked along the passenger side of the vehicle, he continued to observe § 87(2)(b)'s upper body lean toward the passenger side of the vehicle. § 87(2)(b) was leaning far enough to be able to touch his passenger side door. SGT Willabus did not observe § 87(2)(b) make any other movements inside the vehicle. Other than leaning toward the passenger side of the vehicle, SGT Willabus did not observe any movements that led him to suspect that § 87(2)(b) was concealing a weapon. SGT Willabus added that he did not suspect § 87(2)(b) of possessing a weapon; however, based on the observation post's transmission, SGT Willabus did suspect § 87(2)(b) of possessing contraband.

PO Bowman asked § 87(2)(b) for his driver's license and registration. § 87(2)(b)'s driver's license was inside his wallet, but SGT Willabus did not recall from where § 87(2)(b) retrieved the rest of his documents. At SGT Willabus' direction, PO Bowman also asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) stepped out of the vehicle and he was escorted to the rear. § 87(2)(b)'s demeanor remained calm. SGT Willabus walked around the rear of § 87(2)(b)'s vehicle to the driver's side. Having approached the driver's side where § 87(2)(b) was now standing outside the vehicle, SGT Willabus observed that § 87(2)(b) was wearing a red shirt and gray or dark colored pants. SGT Willabus did not observe any bulges in his clothing. SGT Willabus did not recall if § 87(2)(b) carried anything on his waistband, but added that nothing about the waistband drew his attention.

At SGT Willabus' direction, PO Bowman frisked § 87(2)(b) at the rear of the vehicle. PO Bowman frisked § 87(2)(b)'s chest, waist, and legs. The frisk was brief. PO Bowman did not report feeling anything noteworthy during the frisk. § 87(2)(b) was not asked to remove his shoes nor was he searched. After the frisk, SGT Willabus still did not suspect § 87(2)(b) of carrying a weapon but still suspected § 87(2)(b) of possessing contraband. § 87(2)(b) asked why he was being stopped. SGT Willabus, reluctant to divulge information regarding the observation set in order to protect its secrecy, instead told § 87(2)(b) that he had been observed in commission of a traffic violation, which was either related to his license plate cover or a tail light. (SGT Willabus did not recall which violation he noted, but recalled that at least both of those were violations that he actually observed on the vehicle.) SGT Willabus asked where § 87(2)(b) was coming from. § 87(2)(b) replied that he was coming from home. SGT Willabus asked him if he had made any stops along the way. § 87(2)(b) replied that he had not and that he had traveled on Flatbush Avenue. SGT Willabus knew that he had observed § 87(2)(b) traveling on East 21st after receiving the transmission from the observation post. SGT Willabus and PO Bowman had followed § 87(2)(b)'s vehicle from the point that it turned right on Albemarle Road and East 21st Street. This false response heightened SGT Willabus' suspicion that § 87(2)(b) was in possession of narcotics. SGT Willabus asked § 87(2)(b) where he was going. SGT Willabus did not recall § 87(2)(b)'s response. § 87(2)(b)'s demeanor was calm, instructions or requests for information never had to be repeated to him, and he was cooperative. SGT Willabus directed PO Bowman to demonstrate to § 87(2)(b) that his left tail light was broken by pressing on the vehicle's brake pedal. PO Bowman walked to the driver's side door of the vehicle, leaned inside through the driver's side door, and demonstrated that the tail light was broken.

The demonstration of the broken tail light was designed to provide PO Bowman an opportunity to inspect interior areas of the vehicle while simultaneously demonstrating the traffic infraction to § 87(2)(b). SGT Willabus did not observe what specific areas PO Bowman inspected inside of the vehicle. SGT Willabus trusted that PO Bowman, based on his training and experience, confined his search to the driver's seat area, the driver's side floorboard, and the area between the arm rest and the driver's seat. SGT Willabus never saw if PO Bowman opened the middle console or the glove compartment of the vehicle. Neither SGT Willabus nor PO Bowman sat in the driver's seat of § 87(2)(b)'s vehicle.

PO Bowman returned to the rear of the vehicle without finding contraband in the vehicle. SGT Willabus began receiving transmissions on his radio from the observation post. § 87(2)(b) asked what was going on. Now aware that the stop produced negative results for contraband, SGT Willabus provided additional details in response to § 87(2)(b)'s inquiry. SGT Willabus explained that the area § 87(2)(b) had just been in was the site of an investigation. SGT Willabus further explained that because § 87(2)(b) had stopped and interacted with someone at the location, he himself had become part of the investigation. § 87(2)(b) was released because they had failed to discover contraband. PO Bowman subsequently prepared a Stop, Question, and Frisk Report for the stop. SGT Willabus recalled § 87(2)(b) mentioning that he had a family member who was a police officer, but there was no further discussion of this information during the stop. The entire encounter lasted approximately three to five minutes.

Subject Officer: PO DAVID BOWMAN

- PO Bowman is a § 87(2)(b)-old white male, who § 87(2)(b) and has brown hair and blue eyes.
- On July 7, 2011, PO Bowman was assigned to a street narcotics enforcement unit (SNEU) and worked from 9:30 a.m. to 6:05 p.m. PO Bowman was dressed in uniform and partnered with SGT Winston Willabus in the leader vehicle (marked patrol car #5303) of the SNEU team. Since the date of this incident, PO Bowman has been reassigned from the 70th Precinct to Queens Court Section.

Memo Book (encl. 8a-8b):

PO Bowman did not have memo book entries regarding this incident. At 11:05 a.m., the SNEU team established an observation set at Regent Place and East 21st Street. At 1:00 p.m., the team had two arrests at Beverly Road and Flatbush Avenue. At 1:40 p.m., the team has an arrest at Cortelyou Road and East 21st Street. At 2:00 p.m., the team had an arrest at Cortelyou Road and Ocean Avenue.

CCRB Statement (encl. 8c-8e):

On November 3, 2011, PO Bowman was interviewed at the CCRB. § 87(2)(g)

On July 7, 2011, the observation sets for the SNEU team on which PO Bowman worked were predetermined. PO Bowman's responsibilities on the team consisted of driving the SNEU supervisor, SGT Willabus, as he verified arrests made by the SNEU team. On the team, the supervisor was not required to verify all stops. The SNEU team communicated over standard radios tuned to a tactical channel. The SNEU team consisted of one observation post, two arrest teams (one of which doubled as the team leader vehicle), and a prisoner van. PO Dudley Ewald and PO Jonmichel Lobosco were assigned to the observation post. PO Jonathan Leon and PO Amjad Kahn were assigned to the prisoner van. PO Joseph Imperatrice, who has since been promoted to the rank of sergeant, and PO Stacey Robinson were assigned to an arrest team.

On July 7, 2011, at approximately 12:30 p.m., the observation post, positioned approximately one block away from the location of the observation set and using binoculars, transmitted a description of a narcotics observation at Regent Place and East 21st Street. The transmission consisted of a description of a drug transaction involving marijuana, a physical description of the buyer, a description of the buyer's vehicle (including make and model) that he drove away in, and the direction of the vehicle's travel. PO Bowman did not recall the details relayed regarding the transaction or the descriptions that were provided. PO Bowman did not know if the observation post ever lost sight of § 87(2)(b)'s vehicle between the time of the observation and the time of the subsequent vehicle stop.

Because PO Bowman and SGT Willabus were closer to § 87(2)(b) than the other units on the SNEU team, they pulled their patrol car up behind § 87(2)(b)'s vehicle. PO Bowman did not recall observing anything wrong with the condition of § 87(2)(b)'s vehicle. Prior to the vehicle stop, PO Bowman observed the silhouette of § 87(2)(b) moving around from his vantage point at the rear of § 87(2)(b)'s vehicle. The upper body and arms of the silhouette were moving but PO Bowman was unable to elaborate further on these movements. PO Bowman and SGT Willabus stopped the vehicle. A few minutes had transpired between the vehicle stop and the transmission from the observation post. PO Bowman did not confer with the observation post regarding the stop. PO Bowman approached the driver's side of the vehicle. PO Bowman did not recall which side of the vehicle SGT Willabus approached. PO Bowman asked § 87(2)(b) to step out of his vehicle. § 87(2)(b) complied. § 87(2)(b)'s demeanor was calm. PO Bowman asked § 87(2)(b) for his driver's license and registration. PO Bowman did not recall if this request was made before or after he asked § 87(2)(b) to exit the vehicle. As § 87(2)(b) stepped out of the vehicle, PO Bowman asked where he was coming from. § 87(2)(b) said that he was coming from home, which, according to PO Bowman, was "nowhere near" where § 87(2)(b) had been observed. PO Bowman explained that he had been stopped because he was observed performing a drug transaction in a drug prone location that was known for a high prevalence of violent crimes.

PO Bowman's reason for asking § 87(2)(b) to step out of the vehicle was to frisk him because he feared for his safety and suspected § 87(2)(b) of being armed. When asked why he feared for his safety, PO

Bowman stated during his interview, “Any time I deal with any individual, I frisk them for my safety.” PO Bowman added that he observed § 87(2)(b) make movements toward his waistband area when he was outside of the driver’s side door and § 87(2)(b) was still seated in the vehicle. § 87(2)(b)’s hands were empty and, although they were not touching his waistband, they were moving near his pockets. Aside from § 87(2)(b)’s silhouette moving around prior to the vehicle stop, § 87(2)(b)’s movements near his waist and pocket area, and PO Bowman’s routine in frisking “any individual” he interacts with for his “safety,” no other factors led him to suspect that § 87(2)(b) was armed. PO Bowman added that based on the observation post’s transmission that an individual fitting § 87(2)(b)’s description had engaged in a drug transaction, he had probable cause to search for narcotics.

Outside the driver’s side door of § 87(2)(b)’s vehicle, PO Bowman frisked § 87(2)(b)’s waist area, his front and rear pockets, and his legs, down to his ankles. PO Bowman felt nothing during the frisk that heightened his suspicion. After the frisk, PO Bowman entered all of § 87(2)(b)’s pants pockets. PO Bowman looked inside § 87(2)(b)’s socks but did not ask him to remove his shoes. PO Bowman directed § 87(2)(b) to walk to the rear of his vehicle, where SGT Willabus was standing. § 87(2)(b) remained there with SGT Willabus.

Based on his earlier observation of § 87(2)(b) moving his upper body and arms in the vehicle, PO Bowman conducted a search of the vehicle for narcotics that consisted of the following: first by leaning in through the driver’s side door and then by sitting in the driver’s seat, PO Bowman inspected the inside of the driver’s side door, inside the cup-holders, the driver’s side floorboard, and the driver’s side seat. All of these areas were “open and in open view.” As PO Bowman visually inspected these areas, he also used his hands to feel around. PO Bowman never opened the middle console of the vehicle but it may have been opened by § 87(2)(b) at the beginning of the stop when § 87(2)(b) retrieved his documents. PO Bowman never opened the glove compartment. PO Bowman did not recall entering the vehicle via any door aside from the driver’s side door. PO Bowman did not recall seeing SGT Willabus ever enter the vehicle. No contraband was recovered. SGT Willabus observed PO Bowman as he searched the above areas of the vehicle but PO Bowman did not recall SGT Willabus giving him any instructions or directions. After the vehicle search, PO Bowman recorded § 87(2)(b)’s pedigree information and he was released. Although PO Bowman initially stated that he had probable cause pursuant to the transmission he received from the observation post, § 87(2)(b) was released because the officers were unable to find the narcotics on him or inside the vehicle.

The entire encounter lasted approximately two minutes. No other members of the SNEU team responded to this stop. Approximately four arrests were made as a result of the observation set at Regent Place and East 21st Street but PO Bowman did not recall if any of those individuals were involved in the observed transaction with § 87(2)(b).

PO Bowman prepared a Stop, Question, and Frisk Report but he did not note the log number of the report in his memo book.

Subject Officer: PO DUDLEY EWALD

- *PO Ewald is a § 87(2)(b)-old white male, who § 87(2)(b) and has brown hair and brown eyes.*
- *On July 7, 2011, PO Ewald, who has since been reassigned to Narcotics Borough Brooklyn South, was assigned to the observation post of a street narcotics enforcement unit (SNEU) and worked from 9:30 a.m. to 6:05 p.m. PO Ewald was dressed in plainclothes, partnered with PO Jonmichel Lobosco, and working on foot.*

Memo Book (encl. 9a-9c):

PO Ewald had no memo book entries regarding this incident. At 11:05 a.m., a set was established in the vicinity of Regent Place and East 21st Street. At 1:00 p.m., the team had an arrest at Beverly Road and Flatbush Avenue. At 1:40 p.m., the team had an arrest at Cortelyou Road and East 21st Street. At 2:00 p.m., the team had an arrest at Cortelyou Road and Ocean Avenue. At 2:10 p.m., the team had two arrests at Regent Place and East 21st Street. At 2:30 p.m., PO Ewald returned to the 70th Precinct stationhouse.

CCRB Statement (encl. 9d-9e):

On November 17, 2011, PO Ewald was interviewed at the CCRB. On July 7, 2011, at approximately 11:05 a.m., PO Ewald and PO Lobosco established an observation post in relation to the SNEU team's set at Regent Place and East 21st Street. The observation post was located on a rooftop within one block of the set. PO Ewald did not recall the building's address. The set at Regent Place and East 21st Street was pre-determined. PO Ewald was equipped with binoculars, which he used to make his observations throughout the day. The team, with the exception of PO Lobosco, whose radio was tuned to the central frequency, communicated over standard-issue radios tuned to a tactical channel. The supervisor of the SNEU team, SGT Winston Willabus, supervised all stops and arrests.

In the observation post, PO Ewald's responsibility was to observe narcotics transactions and transmit descriptions of his observations to the rest of the team. PO Ewald's transmissions consisted of a description of the individual (or the vehicle, if the individual was driving), a direction of flight, and the type of transaction (if hands touched). When possible, PO Ewald provided license plate numbers and descriptions of visible objects that had been exchanged, such as currency and narcotics. From his vantage point on the roof, PO Ewald was at times able to describe packaging—such as ziplock bags—but was not able to report specific types of narcotics to the team. PO Ewald did not recall specific transmissions or the number of transmissions that he made on the date of this incident. The arrests noted in PO Ewald's memo book resulted from his observations; however, aside from the two arrests at Regent Place and East 21st Street, the arrests were out of his line of sight. Furthermore, PO Ewald did not recall observing the arrests at Regent Place and East 21st Street. PO Ewald did not recall if members of his team executed stops that did not result in arrests. On the SNEU team, if a unit executed a stop, they would report over the tactical channel whether the stop yielded positive or negative results. PO Ewald did not recall if stops occurred that yielded negative results. PO Lobosco's responsibility in the observation post consisted of rooftop security. Unlike PO Ewald, who confined himself to a single location on the roof in order to limit his visibility, PO Lobosco was on the move throughout the duration of the set verifying that no one was sneaking up on them or conducting counter-surveillance. Additionally, PO Lobosco was not privy to the communications of the rest of the SNEU team because his radio was tuned to the central frequency in order to respond in case a third party called 911 on him and PO Ewald for being on the roof so that he could inform the dispatcher that they were officers.

PO Ewald did not recall the roles of the other officers on the SNEU team, except to say that SGT Willabus was in the team leader vehicle and that he and PO Lobosco constituted the only observation post on the SNEU team. The set at Regent Place and East 21st Street lasted approximately three hours. Despite being shown a photo of § 87(2)(b) and being apprised of the details of the incident in question, PO Ewald had no independent recollection of the observation that led to the stop or of witnessing the stop.

Witness Officer: PO JONMICHEL LOBOSCO

- PO Lobosco is a § 87(2)(b)-old Hispanic male, who § 87(2)(b) and has brown hair and brown eyes.
- On July 7, 2011, PO Lobosco was assigned to the observation post of a street narcotics enforcement unit (SNEU) and worked from 9:30 a.m. to 6:05 p.m. PO Lobosco was dressed in plainclothes, partnered with PO Dudley Ewald, who has since been reassigned to Narcotics Borough Brooklyn South, and working on foot.

Memo Book (encl. 10a-10c):

PO Lobosco had no entries in his memo book regarding this incident. He and PO Ewald were assigned to the observation post, SGT Winston Willabus and PO David Bowman were assigned to the leader vehicle, PO Amjad Kahn and PO Jonathan Leon were assigned to the prisoner van, and PO Joseph Imperatrice and PO Stacey Robinson were assigned to the apprehension vehicle. At 11:05 a.m., a set was established in the vicinity of Regent Place and East 21st Street. At 1:00 p.m., the team had two arrests at Beverly Road and Flatbush Avenue. At 1:40 p.m., the team had an arrest at Cortelyou Road and East 21st Street. At 2:00 p.m., the team had an arrest at Cortelyou Road and Ocean Avenue. At 2:10 p.m., the team had two arrests at Regent Place and East 21st Street. At 2:10 p.m., the set was closed. At 2:30 p.m., PO Lobosco returned to the 70th Precinct stationhouse.

CCRB Statement (encl. 10d-10e):

On November 16, 2011, PO Lobosco was interviewed at the CCRB. § 87(2)(g)

On July 7, 2011, the SNEU team to which PO Lobosco was assigned operated one pre-determined observation set, which was located at Regent Place and East 21st Street. The SNEU team was equipped with binoculars and standard radios. The supervisor of the SNEU team verifies all arrests and sometimes supervises stops. Aside from PO Lobosco, whose radio was tuned to the central frequency, the rest of the team communicated over the tactical channel. PO Lobosco's role in the observation post, which was located on the roof of § 87(2)(e) § 87(2)(b). During the entirety of the set, which lasted from 11:05 a.m. to 2:10 p.m., PO Lobosco patrolled the rooftop, verifying that no one was trespassing at the entrances and fire escapes. PO Lobosco's radio was tuned to the central frequency to monitor any pertinent 911 calls, such as trespassers on the roof. PO Ewald's responsibility was to observe narcotics transactions at the set and relay his observations to the rest of the team over the tactical channel. PO Lobosco was not privy to any information leading to stops or arrests and was not aware of any information related to the stop of § 87(2)(b) because of the following reasons: (1) PO Lobosco was constantly patrolling the rooftop; (2) PO Lobosco was not using the tactical channel; (3) PO Lobosco was never positioned near PO Ewald, who was confined to a single location on the roof; and (4) PO Lobosco did not observe any of the narcotics transactions that took place at the set. On other days, PO Lobosco and PO Ewald would alternate roles in the observation post for different sets; however, on July 7, 2011, the SNEU team only operated one set and PO Lobosco and PO Ewald maintained the aforementioned responsibilities throughout its duration. Additionally, PO Lobosco and PO Ewald remained on the roof for the duration of the set. Despite being shown a photo of § 87(2)(b) PO Lobosco had no independent recollection of him. PO Lobosco had no independent recollection regarding the arrests made as a result of the set nor did he recall stops taking place that resulted in Stop, Question, and Frisk Reports in lieu of arrests.

Witness Officer: PO JOSEPH IMPERATRICE

- *PO Imperatrice is a § 87(2)(b) -old white male, who § 87(2)(b), and has brown hair and brown eyes.*
- *On July 7, 2011, PO Imperatrice, who has since been promoted to the rank of sergeant and reassigned to the 7th Precinct, was assigned to the apprehension unit of a street narcotics enforcement unit (SNEU) and worked from 9:30 a.m. to 6:05 p.m. PO Imperatrice was dressed in uniform, partnered with PO Stacey Robinson, and assigned to marked patrol car #3171.*

Memo Book (encl. 11a-11c):

At 12:00 p.m., there was an arrest at Albemarle Road and Flatbush Avenue. At 12:30 p.m., PO Imperatrice returned to the 70th Precinct on the prisoner transport with PO Ahmed Khan. At 12:40 p.m., a tint meter test was conducted with regard to the arrest noted at 12:00 p.m. The results of the tint meter test were recorded underneath the 12:40 p.m. entry. At 4:05 p.m., the individual was released from the stationhouse with two vehicle and traffic law violation summonses. At 1:45 p.m., PO Imperatrice resumed patrol.

CCRB Statement (encl. 11d-11e):

On October 20, 2011, PO Imperatrice was interviewed at the CCRB. On July 7, 2011, at approximately 12:00 p.m., PO Imperatrice and PO Robinson arrested an individual at Albemarle Road and Flatbush Avenue pursuant to an observation generated at a set at Regent Place and East 21st Street. PO Khan responded to the location and PO Imperatrice joined him in transporting the prisoner to the 70th Precinct stationhouse. PO Robinson drove the patrol car back to the stationhouse by herself. PO Imperatrice did not resume patrol with PO Robinson until 1:45 p.m. Despite being shown a photo of § 87(2)(b) and being apprised of the details of this incident, PO Imperatrice did not recall this incident.

Subject Officer: PO ISHMAEL BAILEY

- *PO Bailey is a § 87(2)(b) -old black male, who § 87(2)(b), and has black hair and brown eyes.*
- *On July 8, 2012, PO Bailey worked from 7:05 a.m. to 3:40 p.m. and was assigned to the telephone switchboard in the stationhouse. PO Bailey was dressed in uniform and working alone.*

Memo Book (encl. 12a-12c):

PO Bailey had no entries in his memo book regarding this incident.

CCRB Statement (encl. 12d-12e):

On January 9, 2012, PO Bailey was interviewed at the CCRB. On July 8, 2012, PO Bailey was assigned to the telephone switchboard at the 63rd Precinct stationhouse. PO Bailey sat at a desk to the right of the front desk (when facing the front desk). PO Bailey's duties consisted of answering outside phone calls to the stationhouse. When asked if he would be expected to assist civilians in filing complaints as part of his duties as the telephone switch board operator, PO Bailey confirmed that he would. After PO Bailey confirmed this, his legal representative said, "What do you mean assist with a civilian complaint. You're not allowed to take a civilian complaint." PO Bailey then agreed, "No. We're not allowed. You direct them to what they have to do. We don't take civilian... we're not allowed to do that, period." When asked how a civilian could file a complaint at the stationhouse, PO Bailey stated that civilians could call a phone number, which is posted on a sign on an adjacent wall, which civilians are directed to, or complete a complaint form with a supervisor. PO Bailey elaborated by saying that in the absence of the desk officer, if a civilian approached him to file a complaint, he would direct them to the posted phone number in order to file their complaint, because he would not be able to assist them in lieu of a supervisor. However, PO Bailey did not recall this taking place on the date in question. PO Bailey did not recall if

SGT Qunda Stewart-Perry was at the stationhouse on the date in question. PO Bailey did not recall who, if anyone, was the desk supervisor at the time of the incident.

When shown a photograph of § 87(2)(b) PO Bailey said, “Hm... no... vague... vague... no.” When asked to clarify his response, PO Bailey said that he did not recognize § 87(2)(b). Despite being apprised of the details surrounding § 87(2)(b)'s visit to the stationhouse and the substance of his civilian complaint, PO Bailey did not recall the incident. PO Bailey had no recollection of any civilians visiting the stationhouse to file civilian complaints.

Witness Officer: SGT QUNDA STEWART-PERRY

- SGT Stewart-Perry is a § 87(2)(b)-old black female, who § 87(2)(b), and has black hair and brown eyes.
- On July 7, 2011, SGT Stewart-Perry worked 11:05 p.m. to 8:02 a.m. on July 8, 2011, and was assigned as the desk officer. After her shift, SGT Stewart-Perry worked a modified tour from 8:02 a.m. until 3:52 p.m., during which time she had a court appearance. SGT Stewart-Perry was dressed in uniform.

Memo Book (encl. 13a-13b):

SGT Stewart-Perry had no entries in her memo book regarding this incident.

CCRB Statement (encl. 13c-13d):

On October 21, 2011, SGT Stewart-Perry was interviewed at the CCRB. On July 8, 2011, SGT Stewart-Perry appeared in court following her midnight tour from 11:05 p.m. on July 7, 2011 to 8:02 a.m. on the day in question. SGT Stewart-Perry left for court immediately after the conclusion of her midnight tour, at 8:02 a.m. After her court appearance, SGT Stewart-Perry returned to the stationhouse to sign out for the day. SGT Stewart-Perry did not recall when she returned to the stationhouse or what she did there, if anything, before signing out. According to the 63rd Precinct command log, SGT Stewart-Perry was granted lost time from 1:00 p.m. to 4:52 p.m. Despite being shown a photograph of § 87(2)(b) and being apprised of the details of § 87(2)(b)'s visit to the stationhouse, SGT Stewart-Perry did not recall the incident.

Witness Officer: PO RACHEL FORD

- PO Ford is a § 87(2)(b)-old black female, who § 87(2)(b) and has black hair and brown eyes.
- On July 8, 2011, PO Ford worked from 7:05 a.m. to 3:40 p.m. and was assigned to patrol sectors B and F of the 63rd Precinct. PO Ford was dressed in uniform, partnered with PO Diane Rivera, and assigned to marked patrol car #4409.

Memo Book (encl. 14a-14c):

At 11:36 a.m., PO Ford took her meal. At 12:34 p.m., PO Ford resumed patrol.

CCRB Statement (encl. 14d-14e):

On March 12, 2012, PO Ford was interviewed at the CCRB. On July 8, 2011, at approximately 11:36 a.m., PO Ford returned to the 63rd Precinct stationhouse for her meal time. PO Ford eats her meal downstairs, in the women's locker room, and did so on the date of this incident. On some occasions, PO Ford may submit paperwork to supervisors during her meal, but did not recall whether she did so on the date. PO Ford did not recall performing any duties near the front desk during her meal on this date, nor did she recall assisting civilians in the process of filing a civilian complaint. (At the prompt of her legal representative, PO Ford stated that she has never been asked to nor participated in assisting a civilian with

filing a civilian complaint.) Despite being shown a photo of § 87(2)(b) and being apprised of the details surrounding his visit to the stationhouse, PO Ford had no recollection of this incident. At 12:34 p.m., PO Ford resumed patrol.

Witness Officer: PO LISA DENTON

- PO Denton is a § 87(2)(b)-old black female, who § 87(2)(b), and has black hair and brown eyes.
- On July 8 2011, PO Denton worked from 7:00 a.m. to 3:23 p.m. and was assigned to crime analysis. PO Denton was dressed in uniform and working alone inside the 63rd Precinct stationhouse.

Memo Book (encl. 15a-15c):

At 7:00 a.m., PO Denton was present for duty. At 3:23 p.m., PO Denton ended her tour.

CCRB Statement (encl. 15d-15e):

On March 12, 2012, PO Denton was interviewed at the CCRB. On July 8, 2011, PO Denton performed the bulk of her duties on the second floor of the 63rd Precinct stationhouse inside the Crime Analysis office. (Civilians do not have access to any part of the second floor of the stationhouse.) On occasion, it is possible that PO Denton's duties lead her to other areas of the stationhouse, including the locker room and the 124 room, but these tasks are brief and most of her work takes place inside the Crime Analysis Office. PO Denton did not recall whether her duties led her to the front desk area on the date of this incident. PO Denton is always assigned to Crime Analysis and did not recall a single instance in which she interacted with a civilian in person during her tour or an instance in which she assisted a civilian in filing a civilian complaint. Despite being shown a photo of § 87(2)(b) and being apprised of the details surrounding his visit to the stationhouse, PO Denton did not recall the incident.

Witness Officer: PO DINO MASSENAT

- PO Massenat is a § 87(2)(b)-old black male, who § 87(2)(b), and has black hair and brown eyes.
- On July 8, 2011, PO Massenat was not on duty.

Memo Book (encl. 16a-16b):

PO Massenat did not have entries in his memo book regarding this incident. On July 8, 2011, PO Massenat was not on duty.

CCRB Statement (encl. 16d-16e):

On January 23, 2012, PO Massenat was interviewed at the CCRB. PO Massenat was not on duty on the date of this incident.

NYPD Documents (encl. 17j-18ss):

70th Precinct SPRINT Index (encl. 17j-17l)

After a review of an index of all SPRINT reports generated within the confines of the 70th Precinct on the date of the incident between 10:30 a.m. and 2:30 p.m., the investigation identified no matching SPRINTs for this incident.

70th Precinct Handwritten Stop, Question, and Frisk Log and Request to Criminal Records Section (encl. 18q-18s, 22k)

The handwritten Stop, Question, and Frisk log had no record of a report prepared for the stop of § 87(2)(b). On February 13, 2012, a request to Criminal Records Section for a the report yielded negative

results.

New York State Police/Management Information Systems Division Warrant Check Results (encl. 18w-18y)

On July 20, 2011 and July 29, 2011, queries sent to the New York State Police and MISD for any warrant checks conducted for § 87(2)(b) on the date of this incident were returned with negative results.

63rd Precinct Command Log (encl. 18z-18dd)

The 63rd Precinct command log made no mention of § 87(2)(b)'s visit to the stationhouse.

63rd Precinct Telephone Switchboard Log (encl. 18nn)

The 63rd Precinct telephone switchboard log noted that at an unspecified time, PO Paul McCarthy relieved PO Bailey of his duties for an indeterminate period of time on the date of the incident. However, according to the 63rd Precinct roll call (encl. 18gg), at the time of § 87(2)(b)'s visit to the stationhouse, PO McCarthy was taking his meal.

63rd Precinct Roll Call (encl. 18ee-18ll)

The 63rd Precinct roll call identified PO Bailey, SGT Stewart-Perry, PO Ford, and PO Denton as possible subject officers of § 87(2)(b)'s allegation of refusal to process a civilian complaint.

70th Precinct BADS Arrest Index (encl. 18oo-18ss)

As of January 27, 2012, the 70th Precinct BADS arrest index for July 7, 2011 listed three arrests by this SNEU team. Arrest #§ 87(2)(b) was for § 87(2)(b)

§ 87(2)(b). Arrest #§ 87(2)(b) and arrest #§ 87(2)(b) were for § 87(2)(b) § 87(2)(b). Additionally, at the time of this query, there were eleven sealed arrests within the command.

Other Evidence

Google Maps (encl. 4b)

Driving directions obtained from Google Maps demonstrate that § 87(2)(b)'s route from home to the Brooklyn entrance to the Brooklyn Bridge would have led him to the intersection of Flatbush Avenue and Church Avenue.

Video Footage

On September 9, 2011, the undersigned obtained video footage from a Chase Bank branch located at the intersection of Flatbush Avenue and Church Avenue. However, the video footage did not provide a vantage point that encompassed the immediate location of the stop.

Status of Civil Proceedings (encl. 19a)

§ 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 19, 2012 with regard to the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History (encl. 3a):

This is the first CCRB complaint filed by § 87(2)(b)

Subject Officers' CCRB Histories (encl. 2a-2f):

- SGT Willabus has been a member of the service for eight years and there is one substantiated CCRB allegation against him (encl. 2a-2b):
 - In case #200700641, a detainment allegation was substantiated against SGT Willabus and the CCRB recommended charges. The NYPD declined to prosecute.
- PO Bowman has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 2c-2d).
- PO Ewald has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 2e).
- PO Bailey has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2f).

Conclusion

Identification of Subject Officers

SGT Willabus and PO Bowman acknowledged being present at the scene and interacting with § 87(2)(b)

§ 87(2)(g)

On February 29, 2012, § 87(2)(b) identified PO Bailey during a photo array viewing as one of the subject officers of his allegation of a refusal to process his civilian complaint. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, SGT Winston Willabus supervised the frisk of § 87(2)(b)

Allegation B – Abuse of Authority: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, PO David Bowman searched § 87(2)(b)

Allegation C – Abuse of Authority: On July 7, 2011, on Flatbush Avenue between Church Avenue and Snyder Avenue, SGT Winston Willabus supervised the search of the car in which § 87(2)(b) was an occupant.

According to § 87(2)(b) shortly before his vehicle was stopped, he left his home, located at § 87(2)(b) in Brooklyn, and drove northbound on Flatbush Avenue toward the Brooklyn Bridge. § 87(2)(b) did not commit any traffic violations nor did he stop his vehicle at any point or interact with any individuals in any way. § 87(2)(b) never traveled on East 21st Street before being stopped. When stopped, § 87(2)(b) was told that he fit a description and was asked to step out of his vehicle. § 87(2)(b) was frisked and searched outside his vehicle by PO Bowman. After § 87(2)(b) was frisked and searched, PO Bowman searched § 87(2)(b)'s vehicle.

According to SGT Willabus, he and PO Bowman received a radio transmission from the observation post of the SNEU team, which was staffed by PO Lobosco and PO Ewald. The transmission provided a physical description of a suspected buyer, though SGT Willabus only recalled that it described a black male. A suspected dealer, who was subsequently arrested by the SNEU team on the same day, walked up to the buyer's vehicle, which was described as either a Toyota Camry or Nissan Maxima § 87(2)(b) was driving a Nissan Maxima) and they engaged in a hand-to-hand transaction, but SGT Willabus did not recall if the radio transmission described what objects were exchanged. The buyer's vehicle drove past the patrol car in which SGT Willabus and PO Bowman were seated and made a right turn at Albemarle Road and East 21st Street. The officers followed § 87(2)(b)'s vehicle as it drove away from Albemarle Road and East 21st Street toward Flatbush Avenue § 87(2)(g)

PO Bowman recalled that the radio transmission identified marijuana as the subject of the exchange; however PO Bowman did not recall specifics about the physical description or the vehicle description that was reported over the radio. PO Lobosco was a member of the SNEU team's observation post; however, his role consisted of rooftop security on the date in question, not observing the narcotics sales. Additionally, his radio was tuned, as a matter of procedure, to the central dispatch frequency, not the SNEU team's point-to-point frequency, rendering him unaware of the radio transmissions regarding observed narcotics activities. PO Ewald was the only other member of the SNEU team's sole observation post and was responsible for transmitting the substance of his observations to the units on the ground. PO Ewald had no recollection of the individual radio transmissions that he provided to the rest of the SNEU team on the date in question and his vantage point prevented him from being able to observe a vehicle stop at the location of this incident. Both SGT Willabus and PO Bowman stated that they possessed probable cause on the basis of the information that they received, and proceeded to stop § 87(2)(b)'s vehicle on Flatbush Avenue between Church Avenue and Snyder Avenue.

An officer will have probable cause to make an arrest when possessed of information including but not limited to a description of a suspect, his direction of travel, and a description of a hand-to-hand transaction with another suspect who was observed earlier in the day engaged in similar transactions and was subsequently apprehended for sale of narcotics. People v. Pacheco, 74 Misc.2d 113 (Crim. Ct. N.Y. Cty. 1973) (encl. 1a-1f). Probable cause for a drug transaction will entitle an officer to conduct a warrantless search of the buyer's vehicle, including a search of the closed center console, pursuant to the automobile exception to the warrant requirement. People v. DiMatteo, 62 A.D.3d 418 (App. Div. 1st Dept. 2009) (encl. 1g-1h).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

As a result, it is recommended that **Allegations A, B, and C** be **unsubstantiated**.

Allegation D – Abuse of Authority: On July 8, 2011, at the 63rd Precinct stationhouse, PO Ishmael Bailey did not process § 87(2)(b)'s complaint regarding officers.

According to § 87(2)(b) on July 8, 2011, he went to the 63rd Precinct stationhouse, explained the events of the previous day, and expressed his desire to file a complaint regarding the incident. In his intake statement, § 87(2)(b) stated that PO Bailey refused, explaining that the command did not “handle complaints” and directed him to contact the CCRB. In his interview statement, § 87(2)(b) stated that PO Bailey refused, explaining that because the officers were assigned to a different command, he could not file his complaint at the 63rd Precinct stationhouse. Instead, PO Bailey provided § 87(2)(b) with the phone number for the CCRB.

PO Bailey did not recall an interaction with § 87(2)(b) on the date of this incident, nor did he recall an interaction with any civilian attempting to file a complaint. PO Bailey confirmed that he was assigned to the telephone switchboard, which was positioned beside the front desk inside the stationhouse. PO Bailey also confirmed that his duties in that capacity involved fielding civilian inquiries. When asked to describe the process that a civilian would engage in if he were filing a civilian complaint, PO Bailey stated that a supervisor's presence was necessary. In the absence of a supervisor, PO Bailey stated that he would not be able to assist the civilian at all and would instead direct them to a phone number posted on an adjacent wall. The civilian would then be able to dial this phone number and file the complaint in that manner.

Civilians may file complaints against police officers at any NYPD command location. Police officers are required to interview the civilian, prepare a Civilian Complaint Report, provide the civilian with a copy of the report, inform the CCRB, and provide the report to a supervisor for review. Patrol Guide Procedure 207-31 (encl. 1i-1o).

§ 87(2)(g)

As a result, it is recommended that **Allegation D** be **substantiated**.

Allegation E – Abuse of Authority: On July 8, 2011, at the 63rd Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding officers.

According to § 87(2)(b) following his discussion with PO Bailey, an unidentified officer approached and reiterated PO Bailey's reason for not processing his complaint, which was that he could not file a

complaint at a command different from the one to which the subject officers were assigned. The unidentified officer also directed § 87(2)(b) to call the CCRB to file his complaint instead.

§ 87(2)(g)

As a result, it is recommended that **Allegation E** be closed as **officer unidentified**.

§ 87(2)(g), § 87(4-b)

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date